

Appeal to the Appellate Authority Rules, 2004

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Union of India - Act

Appeal to the Appellate Authority Rules, 2004

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Appeal to the Appellate Authority Rules, 2004

Rule APPEAL-TO-THE-APPELLATE-AUTHORITY-RULES-2004 of 2004

Published on 16 April 2004

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Appeal to the Appellate Authority Rules, 2004

Published Vide G.S.R. 265(E), dated 16.4.2004, published in the Gazette of India, Ext., Pt.II, Section 3(i), dated 16.4.2004

9.

/482

In exercise of the powers conferred by clause (u) of sub-section (2) of section 176 of the Electricity Act, 2003, (36 of 2003) the Central Government hereby makes the following rules prescribing the appellate authority for preferring appeal against the orders of the assessing officer, namely:-

1.

Short title and commencement.-

(1)

These rules may be called Appeal to the Appellate Authority Rules, 2004.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.-

(1)

In these rules unless the context otherwise requires,-

(a)

"Act" means the Electricity Act, 2003;

(b)

"section" means a section of the Act.

(2)

Words and expression used and not defined in these rules but defined in the Act, 2003 shall have the meanings respectively assigned to them in Act.

3.

[Appellate Authority.-

[Substituted by G.S.R. 537(E), dated 7.9.2006 (w.e.f. 7.9.2006).]

For the purpose of appeal under section 127, the State Government may, by notification in the Official Gazette, constitute an Appellate Authority consisting of one or more persons such that one of the persons shall have knowledge of matters related to assessment of electricity charges and none of them shall be directly related to the affairs of the territorial jurisdiction of the licensee or supplier of the electricity"].

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